

HOUSE No. 5597

The Commonwealth of Massachusetts

PRESENTED BY:

Steven J. Ouellette and Mark D. Sylvia

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for the appointment of retired police officers as special police officers in the town of Acushnet.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>7/16/2026</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>7/16/2026</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>7/16/2026</i>

HOUSE No. 5597

By Representatives Ouellette of Westport and Sylvia of Fairhaven, a petition (accompanied by bill, House, No. 5597) of Steven J. Ouellette, Mark C. Montigny and Mark D. Sylvia (by vote of the town) that the town of Acushnet be authorized to appoint retired police officers as special police officers in said town. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for the appointment of retired police officers as special police officers in the town of Acushnet.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law, rule or regulation to the
2 contrary, the Board of Selectmen of the town of Acushnet may appoint, at the recommendation
3 of the chief of police and as the chief of police deems necessary, retired police officers as special
4 police officers to perform police details or any police duties arising from police details or during
5 the course of police detail work, whether or not related to the detail work. Such retired police
6 officers shall have been regular full-time police officers who voluntarily retired based upon
7 superannuation. No further deductions shall be made from the regular compensation of such
8 retired police officers under chapter 32 of the General Laws for any service subsequent to their
9 retirement and, upon retirement, such retired police officers shall receive a superannuation
10 retirement allowance equal to that for which they would be entitled to without regard to working
11 any police details subsequent to their retirement. Special police officers appointed pursuant to

12 this act shall not be subject to the maximum age restrictions applied to regular police officers
13 under said chapter 32; provided, however, that such special police officers shall not be eligible to
14 serve as special police officers after reaching 70 years of age. Prior to appointment pursuant to
15 this act, a special police officer shall provide certification to the town that they are covered by
16 personal health insurance and shall pass a medical examination by a physician chosen by the
17 town to determine that the officer is capable of performing the essential duties of a special police
18 officer, the cost of which shall be borne by the special police officer.

19 SECTION 2. Special police officers appointed pursuant to this act shall not be subject to
20 chapter 31 of the General Laws, section 99A, 100, 100B, or 111F of chapter 41 of the General
21 Laws, or chapter 150E of the General Laws; provided, however, that they shall be subject to
22 chapter 151A of the General Laws. A special police officer appointed pursuant to this act shall
23 comply with all requirements of chapter 6E of the General Laws, including: (i) maintaining
24 certification and good standing with the Massachusetts Peace Officer Standards and Training
25 Commission; and (ii) complying with all annual in-service and other training requirements
26 mandated by the municipal police training committee.

27 SECTION 3. When performing the duties under section 1, special police officers
28 appointed pursuant to this act shall have the same power to make arrests and to perform other
29 police functions as do regular police officers of the town of Acushnet.

30 SECTION 4. Special police officers shall be re-appointed annually, subject to removal by
31 the Board of Selectmen at any time with 14 days' written notice. Upon request, the police chief
32 shall provide reasons for removal in writing.

SECTION 5. Special police officers appointed pursuant to this act shall be subject to the rules and regulations, policies, procedures and requirements of the police department and the chief of police of the town of Acushnet, including: (i) restrictions on the type of detail assignments; (ii) requirements regarding medical examinations to determine continuing capability to perform the duties of a special police officer; (iii) requirements for training; (iv) requirements for firearms qualifications and licensing; and (v) requirements regarding uniforms and equipment; provided, however, that the cost of compliance with all requirements shall be at no cost to the town of Acushnet.

SECTION 6: Special police officers appointed pursuant to this act shall be sworn before the town clerk of the town of Acushnet, who shall keep a record of all such appointments.

SECTION 7: An individual who is appointed as a special police officer pursuant to this act shall be eligible for assignment to any detail, subject to the provisions of any collective bargaining agreement then in effect in the town of Acushnet between the town of Acushnet and the police union.

SECTION 8: Appointment as a special police officer pursuant to this act shall not entitle a special police officer to assignment to any detail. Special police officers shall be paid the detail rate applicable to regular full-time officers but shall not be entitled to any other town benefits.

SECTION 9: Retired police officers serving as special police officers pursuant to this act shall be subject to the limitations on hours worked and on payments to retired town employees under paragraph (b) of section 91 of chapter 32 of the General Laws.

SECTION 10. This act shall take effect upon its passage.

54 Or take any action relative thereto.